Ex Tempore

SIKHANGEZILE MAPOSA
versus
GOLIATH MANJALA

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 31 March and 30 June 2026

Opposed Application

G Chitsaka, for the Applicant
N Chikono, for the Respondent

DEME J: The Applicant approached this court seeking an order for contempt of court against the Respondent. More particularly, the Applicant is seeking the following relief:

> "1. That the Application be and is hereby granted
>
> 2. The Respondent be and is hereby declared to be in contempt of the order of this court in case number HC4418/14.
>
> 3. That the Respondent shall within 10 days of this order comply with paragraph 3 of the order in HC4418/14
>
> 4. That the Respondent shall comply with paragraph 2 of the order in HC4418/14 by allowing estate agents and prospective purchasers access to Lot 67 Marlborough Township, Marlborough also known as 3A Helena Road, Marlborough, Harare for viewing purposes.
>
> 5. Should Respondent fail to comply with the order in HC4418/14 as set out in paragraph 3 and 4 above, the Applicant shall be entitled on this order to instruct the Sheriff of Zimbabwe, if he is not available, his deputy or assistant to procure members of the Zimbabwe Republic Police as may be necessary to effect the arrest of the Respondent and cause his committal to Central Prison until such time as he purges his contempt in case number HC4418/14.
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> 6. The Respondent shall pay the costs of this Application on a legal practitioner and client scale."

The Applicant and the Respondent were once married to each other in terms of the then African Marriages Act. This court nullified the marriage between the parties hereto in judgment number HH 264/11. In particular, this court ruled that:

1. "The marriage between Goliath Manjala and Sikhangezile Nkala Maposa solemnised in terms of the then African Marriages Act *Chapter238* (now *Cap 5*:*07*) marriage certificate number 617 of 1989 dated 14 June 1989 be and is hereby declared null and void *ab initio* and of no force or effect.
2. The second respondent being the Registrar of Marriages be and is hereby ordered to nullify the marriage certificate number 617 of 1989 dated 14 June 1989 within seven (7) days from the date of service of this order.
3. They (sic) shall be no order as to costs."

The property acquired during the subsistence of the marriage was apportioned by this court in case number HC 11462/11under Judgment Number HH 171/13. The operative part of the judgment is as follows:

1. "Stand number 9214 Bulawayo Township of Bulawayo Township Lands in the District of Bulawayo, also known as 13 Neasden Avenue, Bradfield, Bulawayo, be and is hereby awarded to defendant as her sole and exclusive property;
2. The defendant be and is hereby awarded 70 percent share of the Remainder of lot 67 Marlborough Township, Marlborough, Harare also known as Number 3A Helena Road, Marlborough, Harare.
3. The plaintiff is hereby awarded a 30 percent share of the Remainder of Lot 67 Marlborough Township, Marlborough, Harare, also known as 3A Helena Road, Marlborough, Harare.
4. The defendant is hereby granted the option to buy out plaintiff in respect of his 30% share in the property, Number 3A Helena Road, Marlborough, Harare, as follows-
   i) The parties shall agree on the value of the property within 14 days of the date of this order. If they fail to agree on a value, they shall within 21days from this date appoint a mutually agreed evaluator to evaluate the property.

   ii) Should they fail to agree on an evaluator, the registrar of the High Court shall be and is hereby directed to appoint an independent evaluator from his panel of evaluators to evaluate the property.

   iii) The cost of evaluation shall be borne by the parties in the ratio 30:70 (as per their respective shares).
5. The defendant shall pay off plaintiff his 30 percent share of the value of the property within six (6) months from the date of receipt of the evaluation report unless the parties agree on a longer period. Should the defendant fail to pay plaintiff's share in full within the stated

period or as agreed, the property shall be sold to best advantage by a mutually agreed estate agent or one appointed by the registrar of the High Court and the net proceeds there from shall be shared in the ratio 30:70.

6. The plaintiff be and is hereby awarded the following movable property: -
   (i) One television set
   (ii) 2 x white bins
   (iii) Picture frames with his pictures inside
   (iv) 1 dinner set
   (v) Brass round coffee table
   (vi) Box with kitchen utensils currently in plaintiff' possession
   (vii) 2 side bed tables
   (viii) 1 brass gold bed
   (ix) Press boy hanger
   (x) 1 ironing board
   (xi) Pilot's briefcase
   (xii) 1 office cabinet
   (xiii) Tablet packing machine
   (xiv) Car trailer
   (xv) BMW 20s
   (xvi) Electric heater
   (xvii) Philips 3 CD changer radio
   (xviii) 1 x 3 door wardrobe
   (xix) 1 white and brass dressing table
   (xx) 2 plate electric stove.
   (xxi) A herd of 13 cattle
7. The defendant is hereby awarded all the remaining movable property including-
   (i) Italian maroon leather sofas
   (ii) Italian coffee table with a bar at the centre
   (iii) Room divider
   (iv) Corner display cabinet
   (v) Two-piece pink sofas with a corner table
   (vi) Bulb cover light
   (vii) Blue fan with a stand
   (viii) 4 x white bins
   (ix) Balance of the picture frames
   (x) Artificial flowers
   (xi) Curtains
   (xii) 2 x wall watches
   (xiii) 2 x double tropical fridges
   (xiv) Oak dining room suit with six chairs
   (xv) 1 x dinner set
   (xvi) Punch set
   (xvii) Food warmer trolley
   (xviii) Coffee table
   (xix) Balance of kitchen utensils
   (xx) 6 plate stove
   (xxi) Oven
   (xxii) Microwave oven
   (xxiii) 4 chair taguta table

(xxiv) 3 x carpet Hoovers
(xxv) Electric sewing machine
(xxvi) Industrial steam iron
(xxvii) Radio 3 CD changer
(xxviii) Bed
(xxix) Dressing table and 2 x side tables
(xxx) 3 x office cabinets
(xxxi) Generator Toshiba kva
(xxxii) Peugeot 605 motor vehicle
(xxxiii) Tools box
(xxxiv) Cable jumpers
(xxxv) Ladder (aluminium)
(xxxvi) 4 x hoes
(xxxvii) Lawn mower (heavy duty)
(xxxviii) Garden folks
(xxxix) Water tank (asbestos)
(xl) 2 x wheelbarrows
(xli) Driller
(xlii) Belgian Puma blankets
(xliii) 3 Belgian movable wardrobes
(xliv) 1 x 6 chest of drawers
(xlv) 3 Belgian Mosquito nets
(xlvi) 2 gold chandelier
(xlvii) 1 plate gas stove
(xlviii) 5 African kitchen stools
(xlix) 2 x black 3-legged Zimba pots
(l) A herd of 14 cattle

8. Each party shall bear their own costs of suit."

In 2016, under case number HC4418/14, this court, following consent by the parties, ruled that:

1. "Applicant and First Respondent shall abide by the Court Order that was granted by this Honourable Court under case number H.C 11462/11.
2. The immovable property namely the remainder of Lot 67 Marlborough Township, Marlborough, also known as 3A Helena Road Marlborough shall be sold to the best advantage of the parties.
3. For the avoidance of doubt each party is to appoint an evaluator from the list of evaluators that are on the Registrar of High Court's panel of evaluators and the two evaluators must within 21 days from the date of this Order evaluate the property in the presence of each other and agree on the minimum value of the property.
4. The evaluators mentioned in paragraph 3 of this order shall have the mandate to sale the immovable property at the price which is more than the agreed minimum value of the immovable property.

5. Upon securing a buyer for the immovable property the evaluators shall request both parties in writing to sign the agreement of sale within seven days failure of which the Sheriff shall sign the agreement of sale on behalf of the party failing to comply.
6. The cost of evaluation agent's commission, capital gains tax, arrears for rates and water for the immovable property shall be borne by the parties in the ratio 70:30 (as per their respective shares) and the net proceeds shall be shared in the same ratio.
7. First Respondent to pay costs."

The order in case number HC 4418/14 superannuated before its enforcement. In case number HCHF 1006/24, this court revived the order in case number HC 4418/14. The revival order is as follows:

"1. The court order granted by this Honourable court on 18 July 2016 under case number HC4418/14 be and is hereby revived as an executable order for this court.
2. That if 1st Respondent fails to sign the agreement of sale in terms of paragraph 5 of the court order granted under case number HC4418/14, the Sheriff shall sign all such documents as are necessary on the 1st Respondent's behalf in order to effect transfer of ownership of the property to the prospective (sic).
3. There is no order as to costs."

In terms of the judgment under HH 171/13 as amended by the order in case number HC 4418/14, the Applicant was awarded 70% of the immovable property being the Remainder of Lot 67 Marlborough Township, Marlborough, also known as 3A Helena Road, Marlborough, Harare (hereinafter called "the property") while the Respondent was awarded 30%. The Applicant alleged that the Respondent is refusing to comply with the order in case number HC 4418/14. The Applicant affirmed that the Respondent failed to appoint his evaluator pursuant to paragraph 3 of the order under case number HC 4418/14. She further asserted that she caused the evaluation of the property and shared the report with the Respondent. According to the Applicant, the Respondent continued to ignore calls from the Applicant to appoint the evaluator despite several demands.

The Applicant averred that the Respondent would chase away evaluators and prospective buyers who visited the property. The Applicant is of the view that by chasing away the evaluators, the Respondent failed to comply with the order in case number HC 4418/14. The Applicant holds the view that the Respondent has no appetite of complying with the order of this

court. The Applicant alleged that the Respondent indicated that he would continue chasing away evaluators until he secures funds to buy out the Applicant.

The Applicant also claimed that the present application meets the essential requirements of the application for contempt of court order. She affirmed that the order sought to be enforced is still extant. She further affirmed that the Respondent is aware of the order and was served with the court order. She additionally maintained that the Respondent is wilfully disobeying the order of this court.

The application was opposed by the Respondent.

According to the Respondent, the present application has no foundation. The Respondent averred that he has been complying with the order in case number HC 4418/14. The Respondent maintained that the Applicant failed to comply with paras 3-5 of the order in case number HC 4418/14.

The Respondent further alleged that the Applicant failed to appoint the evaluator. It is the testimony of the Respondent that the Applicant negotiated the agreement of sale for the property without his involvement, which saw him declining to sign the agreement as a result. According to the Respondent, by excluding the Respondent in the negotiations, the Applicant violated the order in case number HC4418/14.

The Respondent is of the view that the Applicant had the option of approaching the Registrar for the appointment of the evaluator. The Respondent denied chasing away evaluators. He also claimed that he offered to buy out the Applicant. According to the Respondent, this offer was rejected by the Applicant who indicated that the price of the property had gone up.

The sole issue that erupts for determination is whether the Respondent can be declared to be in contempt of court order by virtue of the facts alleged by the Applicant.

The present application is founded upon r 79. The purpose of the present application is to ensure that the dignity, authority, integrity and reputation of this court is maintained. Litigants who appear before the court must learn to respect the court failing which the court may express its displeasure through declaring their conduct to be in contempt of court. Reference is made to the case of *Dutton* v *Minister of Water Resources Development and Management and Anor*[1], where MAVANGIRA JA held that:

[1] SC61/20.

"The law on contempt of court orders is settled, that a party who intentionally refuses or fails to comply with a court order may be found in contempt of court. This was aptly stated in the case of *Artkinson vs Artkinson* [1952] 2 All ER 567 (CA) wherein the court held that:-

"It is a plain and unqualified obligation of every person against, or in respect of whom the order is made by the court of competent jurisdiction to obey it, unless and until that order is discharged; and that two (2) consequences flow from that obligation. The first is that anyone who disobeys an order of court is in contempt and may be punished by committal or attachment or otherwise. The second is that no application to court by such a person will be entertained unless he has purged himself of his contempt" (the underlining is added)

Similarly, Herbstein and van Winsen in *The Civil Practice of the Superior Courts in South Africa* 5th ed at p 1099 state that:

"When a litigant has obtained a court order requiring an opponent to do or not to do something (*ad factum praestandum*) and there is non-compliance, he can approach the court again for a further order declaring the non-compliant party in contempt of court and for the imposition of a sanction which usually, but not invariably, has the object of inducing the non-complier to fulfil the terms of the previous order." (the underlining is added)

The effect of such orders was noted in the case of *Haddow* v *Haddow* 1974 (1) RLR 5 at 8 A-C:

"The object of proceedings for contempt is to punish disobedience so as to enforce an order of court, and in particular an order *ad factum praestandum*, that is to say, orders to do or abstain from doing a particular act. Failure to comply with such order may render the other party without a suitable or any remedy, and at the same time constitute disrespect for the court which granted the order."

Notably also, the learned authors Herbstein & van Winsen in *The Civil Practice of the High Courts of South Africa, op. cit.* at p 1100 state that the object of proceedings that are concerned with the unlawful and intentional refusal or failure to comply with an order of court is the imposition of a penalty in order to vindicate the court's honour consequent upon the disregard of its order and/or to compel performance in accordance with the order.

In *An Introduction To Zimbabwean Law,* FES & Lovemore Madhuku, 2010, the learned author states at pp 112 – 113:

"Civil contempt of court proceedings are designed to compel performance of the court order through the device of committing the defaulting party to prison. The imprisonment imposed is, in most cases, suspended pending performance by the defaulting party. Contempt of court becomes a way of enforcement of judgment in that the person seeking compliance with the order applies to court to have the defaulter found guilty of, and to be

subsequently jailed for, contempt of court. The imprisonment of the court is thus utilized as a way of exerting pressure for compliance with the court order.

In order to hold a person in contempt of court, two requirements must be satisfied, namely, that:

1. The order was not complied with.
2. Non-compliance was willful on the part of the defaulting party. (See *Lindsay v Lindsay* (2), p.299B; *Scheelite King Mining Co (Pvt) Ltd v Mahachi* 1998 (1) ZLR 173 (H))

Once it is proven that the order has not been complied with, there is a rebuttable inference that the non-compliance was willful. The onus is on the defaulting party to rebut the inference on a balance of probabilities.

The difference in purpose between civil imprisonment and imprisonment for contempt of court leads to an important consequence regarding the period of committal to prison. Whereas with civil imprisonment, a person cannot be imprisoned more than once for the same failure to pay a debt, imprisonment for contempt can be repeated for the same contempt as long as non-compliance with the court order continues." (See *Lindsay v Lindsay* (2)) (the underlining is mine)"

Ms *Chitsaka* submitted that the requirements of the application of the contempt of court order are satisfied by the present application. She argued that the Respondent is aware of the order. She also contended that it is common cause that the order is still extant, having been revived. According to Ms *Chitsaka*, what is in dispute is whether the Respondent is in contempt of court by his conduct.

In response, Mr. *Chikono* claimed that the Respondent was not in wilful defiance of the court order. He submitted that the Respondent did not bar evaluators. Mr *Chikono* insisted that the evaluators ought to have jointly visit the property in terms of the order by consent in case number HC 4418/14. He maintained that the Applicant would bring evaluators without prior communication in certain instances, which flies against the order of this court. Mr *Chikono* further submitted that the parties were negotiating for an out of court settlement where the Respondent wanted to buy out the Applicant. On this basis, He argued that the Respondent was not in wilful disobedience to the court order as he was genuinely pursuing a buyout agreement. Responding to proposal for the buy out arrangement, Ms *Chitsaka* submitted that such arrangements were not in terms of the order by consent and hence they have no basis. Only the Applicant had the option of exercising a buyout agreement according to Ms *Chitsaka*.

Ms *Chitsaka* contended that the Respondent defied paras 2 and 3 of the order by consent in case number HC 4418/14. Paragraph 3 of the order required the parties to appoint their evaluators who would establish the value of the property. In particular, the paragraph is as follows*:*

> *"*For the avoidance of doubt each party is to appoint an evaluator from the list of evaluators that are on the Registrar of High Court's panel of evaluators and the two evaluators must within 21 days from the date of this Order evaluate the property in the presence of each other and agree on the minimum value of the property."

It is apparent that the timeline for the appointment of evaluators was not specified by the order in case number HC 4418/14. However, what is apparent from the order is that the two appointed evaluators must evaluate the property within 21 days. The parties to this matter, upon concluding an order by consent made a glaring omission for inserting the period within which the evaluators may be appointed.

Ms *Chitsaka* submitted that the Applicant appointed her own evaluator pursuant to para 3 of the order by consent in case number 4418/14. This allegation was strongly disputed by the Respondent who insisted that the Applicant has no proof that she appointed her own evaluator. A supporting affidavit was authored by the evaluator namely Daniel Chawira Madziva appointed by the Applicant. Reference is made to pp 38-9 of the record. The supporting affidavit is marked annexure I and is attached to the founding affidavit. This puts to rest the dispute on whether the Applicant appointed her own evaluator.

Thus, the Respondent ought to have appointed his own evaluator in compliance with para 3 of the order in case number HC 4418/14. By failing to appoint such an evaluator, the Respondent demonstrated an attitude of disdain towards this court. This behaviour is highly deplorable. The Respondent must learn to respect the order made by a court. The fact that he wanted to buy out the Applicant, as submitted by Mr. *Chikono*, does not take away the disrespectful character especially once the present application was before the court. The Respondent ought to have purged the contempt upon being served with the present application. I do agree with Ms *Chitsaka* in this regard.

Paragraph 3 of the order by consent is clear. The parties ought to have appointed the evaluators. The Respondent clearly understood this provision. Before a court makes a finding that a litigant's behaviour is contemptuous, it must be satisfied that the language of the order is clear. The Respondent must have understood the order sought to be enforced. The court must also be satisfied that the behaviour by the Respondent demonstrates wilful disobedience to the order. Further, the court must establish that the Respondent ought to be aware of the order sought to be enforced. There is no doubt that the Respondent is aware of the order in case number HC 4418/14 as subsequently revived. For basic requirements of the Present application, reference is made to the cases of *Mangwiro and Ors* v *City of Harare*[2], *Madzimbamuto* v *Musamadiya*[3], *Borges* v *Shumba*[4], *Simba Mukambirwa and Ors* v *The Gospel of God Church International*[5], *Batezat* v *Permassan (Pvt) Ltd*[6], *John Strong (Pvt) Ltd* v *William Wachenuka*[7], *Lindsay* v *Lindsay*[8] and *Shaun Evans and Anor* v *Yakub Surtee and Ors*[9].

I disagree with Ms *Chitsaka's* submission that by refusing to allow prospective buyers to inspect the property, the Respondent breached para 2 of the order by consent in case number HC 4418/14. Plainly, para 2 of the order cannot be realised before para 3 of the order by consent is implemented. Parties ought to have appointed the evaluators as a first step. The Applicant ought not to have advertised the property prior to the appointment of the evaluators. Doing so would be putting a cart before the horse. No agreement must be signed before para 3 of the order by consent is complied with.

I am of the view that once the parties have managed to comply with para 3, any subsequent demeanour of chasing away evaluators and prospective buyers by the Respondent, if any, would be clearly in contempt of court. On this basis, the Respondent must be found to be in contempt of para 3. After the implementation of para 3, any attempt to block the evaluators or

[2] HH307/14.
[3] HH235/24.
[4] HH403/21.
[5] SC8/24.
[6] SC49/09.
[7] HH44/10.
[8] 1995 (1) ZLR 295 (S).
[9] SC4/12.

prospective buyers may be held to be in contempt of court. In the circumstances, the application ought to be granted with the necessary textual amendments.

On the question of costs, the ordinary rule is that costs follow the outcome. The Applicant prayed for costs on an attorney and client scale. Such costs can only be granted in exceptional circumstances. Such circumstances have not been established by the Applicant. In my view, costs on an ordinary scale are reasonably sufficient. It is consequently ordered as follows:

A. The application for contempt of court order be and is hereby granted.

B. The Respondent be and is hereby declared to be in contempt of the order of this court in case number HC 4418/14.

C. The Respondent shall within 10 days of this order comply with paragraph 3 of the order in HC 4418/14

D. The Respondent shall, thereafter, comply with paragraph 2 of the order in HC 4418/14 by allowing estate agents and prospective purchasers access to Lot 67 Marlborough Township, Marlborough also known as 3A Helena Road, Marlborough, Harare for viewing purposes.

E. Should Respondent fail to comply with the order in HC 4418/14 as set out in paragraph 3 and 4 above, the Applicant shall be entitled on this order to instruct the Sheriff of Zimbabwe, if he is not available, his deputy or assistant to procure members of the Zimbabwe Republic Police as may be necessary to effect the arrest of the Respondent and cause his committal to Central Prison until such time as he purges his contempt in case number HC 4418/14.

F. The Respondent shall pay the costs of this Application on an ordinary scale.

DEME J ……

Bherebende Law Chambers, Applicant's Legal Practitioners
Moyo, Chikono & Gumiro, Respondent's Legal Practitioners